

OREGON STATE HOSPITAL

POLICY ATTACHMENT

PROCEDURES A:	Property Claim Requests	POLICY: 8.034
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POINT PERSON:	Director of Legal Affairs
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APPROVED:	Interim Superintendent	DATE: JULY 25, 2024
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SELECT ONE:	☐ New policy attachment	☐ Minor/technical revision of existing policy attachment
	☒ Reaffirmation of existing policy attachment	☐ Major revision of existing policy attachment

I. PROPERTY CLAIMS REQUESTS

- A. Each claim for a permanently damaged item must include the following:
1. A completed "Application for Staff Reimbursement of Damaged Property" form;
 2. A completed incident report detailing the circumstances of the incident including, but not limited to what happened, what was damaged, how it was damaged, and who was involved;
 3. Copies of all receipts or estimates for replacement or repair of each permanently damaged item; and
 4. Physical evidence that the item was permanently damaged by providing a picture of the item showing permanent damage or by providing the OSH Legal Affairs Torts and Litigation Department with the damaged item.
- B. A claim must be submitted on the "Application for Staff Reimbursement of Damaged Property" form within 180 days after the employee discovers or should have discovered the damage.
1. Before a claim is submitted to the OSH Legal Affairs Torts and Litigation Department, it must be reviewed by a supervisor to confirm that a patient was involved in the event and that a patient caused permanent damage to the property being claimed.
 2. A completed claim must be sent to the OSH Legal Affairs Torts and Litigation Department once approved by the employee's supervisor.
 3. Incomplete claims will not be processed and will be returned to the employee's supervisor.
- C. The OSH Legal Affairs Torts and Litigation Department will review the completed claim to determine whether the claim is payable.

- D. The cost of repair or replacement of prosthetic appliances damaged when in use at the time of, and in the course of, a compensable injury is a compensable medical expense, including when the worker received no physical injury. Reimbursement for prosthetic appliances may be claimed through the workers compensation claim process.
- E. A claim will not be paid under the following circumstances:
1. where damage to an item is not permanent, making the item still usable;
 2. where damage to an item was caused by body fluids including, but not limited to blood, urine or feces;
 3. where a claim is invalid, incomplete, or doesn't qualify for coverage;
 4. where the amount sought exceeds the maximum amount listed in this policy;
 5. where the amount sought exceeds the funds appropriated for such claims;
 6. where replacement cost exceeds the original cost as documented by original purchase receipt and replacement receipt, or where the replacement cost is unreasonable;
 7. where replacement costs of an item are beyond a reasonable replacement value;
 8. where personal items are unnecessary in the completion of job duties as determined by the OSH Legal Affairs Torts and Litigation Department (*e.g.*, jewelry, non-prescription sunglasses);
 9. where the person incurring damage has been or may be compensated by liability insurance or other restitution; or
 10. where the Superintendent or designee determines the cause or occasion of the accident resulting in damage is chargeable to the conduct or negligence of the party damaged.